

20GDCV00072 20GDCV00072

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-13

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Case Number: 20GDCV00072 Hearing Date: July 13, 2026 Dept: 512

HEARING DATE: Mon., July 13, 2026 JUDGE

/DEPT: Mkrtchyan/512

CASE NAME: Queens

Land Builder, Inc. v. Gu, REMITTITUR: 05-22-26

et al.

CASE NUMBER: 20GDCV00072

NOTICE:

OK

PROCEEDINGS: MOTION FOR ATTORNEY'S FEES

MOVING PARTY: Plaintiff

Queens Land Builder, Inc.

RESP. PARTY: Defendants Ming Gu and Cal Garden, LLC

MOTION FOR ATTORNEY'S FEES

(Cal. Rules of Court, rules 8.891, 3.1702)

TENTATIVE RULING:

Plaintiff Queens Land Builder, Inc.'s Motion

for Award of Attorney Fees on Appeal in the Amount of \$332,605.50 is GRANTED in the reduced amount of \$120,181.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒
Correct Address (CCP §§ 1013, 1013a) OK

☒
16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on June 24, 2026 ☒ Late ☐ None

REPLY: Filed
on June 29, 2026 ☐
Late ☐ None

ANALYSIS:

I.
Background

On April 18, 2023, the Court issued a Final Statement of Decision in this matter, finding for Plaintiff Queens Land Builder, Inc. ("Plaintiff") on the first and second causes of action alleged in the Complaint against Defendants Ming Gu and Cal Garden, Inc. ("Defendants"). (4/18/23 Final Statement of Decision.) The Court did not find for Plaintiffs on the third and fourth causes of action alleged in the Complaint, which Plaintiff effectively withdrew as moot. (4/18/23 Final Statement of Decision.)

On September 20, 2023, the Court granted Plaintiff's Motion for Attorney's Fees in the reduced amount of \$455,053.50 and denied Plaintiff's Motion to Increase Supersedeas Bond as Moot. (9/20/23 Order.) The Court also granted in part Defendants' Motion

to Tax Costs and taxed Plaintiff's costs in the amount of \$3,585.00. (9/20/23 Order.)

On

March 23, 2026, Plaintiff filed the instant Motion for Award of Attorney Fees on Appeal in the Amount of \$332,605.50 (the "Motion").

On May 22, 2026,

the Second District Court of Appeal issued a Remittitur affirming the Court's 04/18/23 judgment and awarding Plaintiff costs on appeal. (Remittitur, filed 05/22/26.)

On

June 24, 2026, Defendants filed an Opposition to the Motion.

On

June 29, 2026, Plaintiff filed a Reply.

That same day,

the Court continued the hearing on the Motion.

II.

Procedural

Issues

The

Court notes that the Opposition was filed and served one day late. However, given the timely Reply, the Court exercises its discretion to address the Opposition on the merits.

III.

Legal

Standard

California rules of Court, rule 8.891 states that

"[e]xcept as provided in this rule or by statute, the prevailing party in a civil appeal is entitled to costs on appeal." (Cal. Rules of Court, rule 8.891, subd. (a)(1). On appeal, the "prevailing party is the respondent if the appellate division affirms the judgment without modification or dismisses the appeal. The prevailing party is the appellant if the appellate division reverses the judgment in its entirety." (Cal. Rules of Court, rule 8.891, subd.

(a)(2).)

A party may recover only the costs of the following on appeal, if reasonable:

(A) Filing fees;

(B) The amount the party paid for any portion of the record, whether an original or a copy or both, subject to reduction by the appellate division under subdivision (e);

(C) The cost to produce additional evidence on appeal;

(D) The costs to notarize, serve, mail, and file the record, briefs, and other papers;

(E) The cost to print and reproduce any brief, including any petition for rehearing or review, answer, or reply;

(F) The cost to procure a surety bond, including the premium, the cost to obtain a letter of credit as collateral, and the fees and net interest expenses incurred to borrow funds to provide security for the bond or to obtain a letter of credit, unless the trial court determines the bond was unnecessary; and

(G) The fees and net interest expenses incurred to borrow funds to deposit with the superior court in lieu of a bond or undertaking, unless the trial court determines the deposit was unnecessary.

(2) Unless the court orders otherwise, an award of costs neither includes attorney's fees on appeal nor precludes a party from seeking them under rule 3.1702.

(Cal. Rules of Court, rule 8.891, subd. (d).)

"A notice of motion to claim attorney's fees on appeal ... under a statute or contract requiring the court to determine entitlement to the fees, the amount of the fees, or both, must be served and filed within the time for serving and filing the memorandum of costs under rule 8.278(c)(1) in an unlimited civil case or under rule 8.891(c)(1) in a limited civil case." (Cal.

Rules of Court, rule 3.1702, subd. (c)(1).) In an unlimited case, a memorandum of costs on appeal must be filed and served within 40 days after issuance of the remittitur. (Cal. Rules of Court, rule 8.278, subd. (c)(1).)

California Rules of Court, rule 3.1702 allows a prevailing party to recover fees pursuant to a statute or contract. (Cal. Rules of Court, rule 3.1702, subd. (a) ["Except as otherwise provided by statute, this rule applies in civil cases to claims for statutory attorney's fees and claims for attorney's fees provided for in a contract"].) "Where a contract or a statute creates a right for the prevailing party to recover attorney fees, the prevailing party is also entitled to attorney fees on appeal." (Villinger/Nicholls Development Co. v. Meleyco (1995) 31 Cal.App.4th 321, 329[.])

The

Court's objective is to award attorneys' fee at the fair market value based on the particular action. (See Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) "The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) " '[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.' " (Ketchum, supra, 24 Cal.4th at p. 1134.) The lodestar method is based on several factors, as relevant to each particular case: "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Id., at p. 1132.) "The ' "experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." ' " (Ibid.) A negative multiplier is appropriate when duplicative work is performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819, 834.)

IV.

Discussion

Parties'

Arguments

Plaintiff moves

for an award of attorney's fees on the grounds that Plaintiff is the prevailing party on appeal given that the Second District Court of Appeal affirmed the trial court judgment in Plaintiff's favor. Plaintiff requests \$332,605.50 in attorney fees on appeal, reflecting time incurred by two attorneys – 263.2 hours billed at \$550.00 per hour, with a 1.5 multiplier, for counsel Steven P. Scandura, and 149 hours billed at \$750.00 per hour for counsel Howard Posner, which includes a 1.25 multiplier. (Motion, Scandura Decl., Posner Decl., Exhs. C, D.)

In Opposition, Defendants

do not dispute that Plaintiff is entitled to attorney's fees on appeal; however, Defendants contend that the attorney fee request "is not grounded in the marketplace, the actual demands of the work, or any reasonable measure of what this appeal required." (Opp., p. 1.) Defendants state that Plaintiff's attorney fees claims are grossly excessive and four times Defendants' estimate and are thus unreasonable, and the billing records are "riddled with block-billed entries" and charge for a "comprehensive re-review of a trial record [Scandura] generated as trial counsel." (Opp., pp. 1-7.) Further, Defendants argue against the use of a multiplier at all as Plaintiff fails to make an adequate showing that a multiplier is warranted in this matter. (Opp., pp. 7-8.)

In Reply, Plaintiff contends the

appeal was entirely fact-based in nature, which thus necessitated the extensive time and effort undertaken by Plaintiff's counsel to review the record multiple times and prepare the respondent brief. (Reply, pp. 1-3.) As such, Plaintiff asserts the attorney's fees requested are reasonable and warranted, especially given that any failure by Plaintiff to address Defendants' contentions on appeal may have been taken as concessions by the Second District Court of Appeal. (Reply, pp. 1-4.) Further, Plaintiff states that the bill to Howard Posner has been paid, which is evidence of reasonableness, and "Defendants attack 'block' entries but are not willing to pay for the time needed to itemize each minute time entry." (Reply, pp. 4-8.) Finally, Plaintiff contends the multiplier is well justified given the contingency nature of the matter and should at least be considered by the trial court. (Reply, pp. 8-10.)

Analysis

Plaintiff

requests \$332,605.50 in attorney fees on appeal, reflecting 263.2 hours billed

at \$550.00 per hour, with a 1.5 multiplier, for work done by Scandura, and 149 hours billed at \$750.00 per hour for work done by Posner, which includes a 1.25 multiplier. (Motion, Scandura Decl., Posner Decl., Exhs. C, D.)

The parties do not dispute that Plaintiff is entitled to attorney's fees on appeal pursuant to the remittitur and the Motion; however, the parties dispute the amount of attorney's fees to which Plaintiff is entitled.

To address this issue, the Court first turns to California Rules of Court, rule 8.891. As an initial matter, the Court finds that Plaintiff is the prevailing party on appeal since Plaintiff was the respondent before the appellate division, and "the appellate division affirm[ed] the judgment without modification." (Cal. Rules of Court, rule 8.891, subd. (a)(2).)

Next, the Court finds the Appellate Division's award of costs does not automatically entitle Plaintiff to attorney's fees. (Cal. Rules of Court, rule 8.891, subd. (d) ["Unless the court orders otherwise, an award of costs neither includes attorney's fees on appeal nor precludes a party from seeking them under rule 3.1702"].) Thus, Plaintiff must satisfy the requirements under California Rules of Court, rule 3.1702 for the Court to award attorney's fees on appeal. (Cal. Rules of Court, rule 8.891, subd. (d).)

Substantively, California Rules of Court, rule 3.1702 allows a prevailing party to recover fees pursuant to a statute or contract. (Cal. Rules of Court, rule 3.1702, subd. (a) ["Except as otherwise provided by statute, this rule applies in civil cases to claims for statutory attorney's fees and claims for attorney's fees provided for in a contract"].)

Here, the parties do not dispute that Plaintiff is the prevailing party and the underlying contract between the parties provides for attorney's fees. The Court agrees. As such, Plaintiff is entitled to recover attorney's fees on appeal.

In support of the Motion's requested fees, Plaintiff submits two declarations from Plaintiff's attorneys, Steven P. Scandura and Howard Posner. (Motion, Scandura Decl., Posner Decl.) Scandura acted as trial counsel in this matter, and Posner acted as appellate counsel. (Motion, Scandura Decl., ¶¶

1-3, Posner Decl., ¶¶ 1-2.) Both attorneys provide timesheets of hours billed and time incurred in the appeal. (Motion, Scandura Decl., Posner Decl., Exhs. C, D.) Scandura provides timesheets detailing tasks including reviewing emails, conducting legal research regarding bond requirements, reviewing the trial court's statement of decision, reviewing trial exhibits, reviewing defense exhibits, calls with Posner regarding appellate briefs and oral argument, appearing at appellate oral argument, redrafting/reviewing appellate briefs, and helping prepare the instant Motion. (Motion, Scandura Decl., Exh. 3.) Posner provides timesheets detailing tasks including reviewing and drafting emails, reviewing trial transcripts and exhibits, reviewing and drafting appellate briefs, conferring with Scandura regarding appellate briefing and trial testimony, revising appellate briefing, preparing for appellate oral argument, and reviewing timesheets and preparing the declaration for the instant Motion. (Motion, Posner Decl., Exh. D.)

"[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.) If the motion is supported by evidence, the opposing party must respond with specific evidence showing that the fees are unreasonable. (Premier Med. Mgmt. Sys. v. California Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 563.)

In Opposition, Defendants submit evidence of a declaration from appellate counsel David Zarmi, who states that, based on Zarmi's experience handling appeals of comparable scope and complexity, a reasonable total estimate of Plaintiff's attorney's fees for this appeal would be approximately 108 hours. (Opp., Zarmi Decl., ¶¶ 1-7.) In Zarmi's professional judgment, the amount requested by Plaintiff is not adequately justified or explained, and "it is highly unusual for the respondent's side of a single appeal to employ two separate attorneys—a trial generalist and an appellate specialist—each billing substantial independent hours for the same record, the same brief, and the same argument." (Opp., Zarmi Decl., ¶¶ 7-8.) In Zarmi's experience as a Certified Appellate Specialist, the 263.2 hours claimed for trial counsel Scandura's work is "independently unreasonable and well outside any reasonable range for this type of work. The role of trial counsel in appellate proceedings is typically limited to providing case-specific background and context to the appellate specialist, reviewing a draft of the brief for factual accuracy, and, if appropriate, attending oral argument (for which many trial counsel do not charge the client). In [Zarmi's] experience, 20 to 30 hours would be a generous estimate

for those functions in a case of this scope and complexity.” (Opp., Zarmi Decl., ¶ 9.)

In

view of all the evidence presented, the Court finds that many of the billing descriptions paired with the dual representation of attorneys warrant a reduction of the fees requested. Indeed, the Court finds Defendants have provided evidence that show many of the fees incurred by Scandura are unreasonable and unnecessarily duplicative of the hours incurred by Posner. For instance, Scandura’s timesheets state Scandura spent over 46.5 hours billed at \$550.00 per hour reviewing trial transcripts and trial documents separate and apart from Posner’s time incurred reviewing the trial transcripts and trial documents. (Motion, Scandura Decl., Posner Decl., Exhs. C-D.) The Court finds this work to be duplicative and unreasonable. Further, Posner was the appellate counsel on this matter, and it is unclear to this Court as to why more hours were incurred by Scandura, who served as trial counsel in this matter, than Posner. (Motion, Scandura Decl., Posner Decl., Exhs. C-D.) Zarmi estimates that reviewing the five volumes of Clerk’s transcript and six volumes of Reporter’s Transcript in this matter, researching applicable legal issues, and drafting/reviewing/filing the respondent brief should have taken 100 hours total. (Opp., Zarmi Decl., ¶ 6.) The Court agrees with Zarmi that Plaintiff’s counsel’s combined estimate of 412 hours between Posner and Scandura is excessive and duplicative.

Further,

the Court notes that it is difficult to ascertain the exact number of hours incurred for many of Scandura’s tasks as Scandura’s timesheet attached to the Motion includes instances of bundled and block billing descriptions. To illustrate, a couple such billing descriptions in Scandura’s timesheet are as follows: 7.5 hours were incurred on “[r]eview[ing] of brief, legal research and reading cases, redrafting, proofreading and corrections,” and 3.5 hours were incurred on “[r]eview[ing] of email and draft[ing] oral argument notes from HP, review[ing] of transcript, review[ing] of Exhibit 26, [and] recalculation of interest to respond to DZ’s interest miscalculation claim.” (Motion, Scandura Decl., Exh. C, pp. 4, 6.)

Additionally, the Court declines to award a multiplier. The Court is permitted, but not required, to apply a multiplier to an award for attorney’s fees. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138 [“the trial court is not required to

include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case; moreover, the party seeking a fee enhancement bears the burden of proof"], emphasis in original.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable. Nor should a fee enhancement be imposed for the purpose of punishing the losing party.” (Id., at p. 1139.) Although this appeal involved a substantial record and required Plaintiff’s counsel to take on some financial risk, the Court finds the risks involved here do not warrant a multiplier of fees, let alone a 1.25 or 1.5 multiplier. Further, the Court does not find the appeal involved a particularly novel or difficult question or circumstances that warranted extensive work or exceptional skill justifying the application of a multiplier.

Finally, the Court also highlights that Plaintiff’s attorney fee request on appeal is approximately half the amount of hours that Plaintiff requested for attorney’s fees in the underlying action. (See 9/20/23 Order.)

Given the billing descriptions, nature of the appeal, and shared representation, the Court finds Plaintiff’s billed hours are excessive and inclusive of duplicative work.

Plaintiff requests a total of \$240,362 in attorney fees for both Scandura and Posner absent the application of a multiplier. Defendants concede that 108 hours is reasonable. (Opp., Zarmi Decl., ¶ 7.) The Court finds an hourly rate of \$550.00 or \$750.00 to be reasonable.

Given all of the above, the amount of attorney’s fees to be awarded is \$120,181.

Furthermore, the Court notes that this amount, while indeed half of the requested fees, also reflects a lodestar calculation of 149 hours billed by Posner at \$750.00 per hour plus 15 hours billed by Scandura at \$550.00 per hour. The Court finds this calculation to be reasonable.

Accordingly, the Motion is GRANTED in the reduced amount of \$120,181.

V.

Conclusion & Order

For the foregoing reasons, Plaintiff Queens Land Builder, Inc.'s Motion for Award of Attorney Fees on Appeal in the Amount of \$332,605.50 is GRANTED in the reduced amount of \$120,181.

Moving party is ordered to give notice.